

The Coroner

Two Temple Gardens 



Health Claims Forum: Mock Inquest

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Why does Suicide Matter

- The policy may exclude cover in the event of death by suicide, or in the event of suicide within one year of the cover incepting.
- If cover is excluded in the event of suicide within one year, by inference cover will be given if suicide occurs after one year.
- If the policy is silent as to suicide, it should not respond to death by suicide, whenever it occurs, because
 - a) such a death is not fortuitous; and
 - b) (possibly) because it is against public policy to offer any financial inducement to suicide.

Beresford v. Royal Insurance Co Ltd

1938 1 AC 58

The Facts

- In 1925, Major Rowlandson who was heavily in debt, insured his life for large sums. The policy excluded cover for suicide within one year of the inception of the risk.
- 9 years later, in 1934, Major Rowlandson shot himself in a taxi in Parliament Square 3 minutes before his life cover was due to expire. Suicide was then a crime.
- Major Rowlandson's last words were "*Driver look at Big Ben and mark well the time*".

Beresford v. Royal Insurance Co Ltd

1938 1 AC 58

The Decision

- The estate argued that by excluding cover for suicide in the policy's first year, the insurers impliedly agreed to grant cover if the suicide occurred after a year.
- The House of Lords refused the claim
 - because it was against public policy to allow the Major's estate to benefit from the fruits of his crime
 - because the insured had himself brought about the insured peril, by his own act, and so the death was not fortuitous

Beresford v. Royal Insurance Co Ltd

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Comment

- Royal Insurance had effectively agreed to pay out in the event of suicide after one year. The parties' freedom to contract for this result was however overridden by public policy considerations.
- Suicide ceased to be a crime in 1961. Today it is routine to pay out in the event of the insured's suicide after one year.
- But does the fact that suicide is no longer a crime remove the public policy argument? Is it in the public interest for anyone to be encouraged to take their own life by the prospect of an insurance payment, and especially for businessmen to see suicide as a way of settling debts?

Beresford v. Royal Insurance Co Ltd

1938 1 AC 58

Further comment

- In any event how about the fortuity argument? The second part of the reasoning on Beresford has never been doubted. In fact there is no decision on the fortuity point, considered on its own, either way.
- Today, a typical one year survival clause in a life policy would probably be considered sufficient to indicate insurers' intention to pay out in the event of a suicide after one year notwithstanding the absence of fortuity.
- But a life policy which was wholly silent as to suicide ought not to respond to the insured's death by his own hand, because such a death is not fortuitous.

Beresford v. Royal Insurance Co Ltd

1938 1 AC 58

Points Ripe for Testing in Court

- The question whether a policy which is silent as to suicide ought to respond to that event is ripe for testing. The absence of fortuity ought to compel a finding for insurers.
- The question whether today suicide should still be held to be against public policy is also ready for testing – perhaps at the same time as the fortuity point.

Beresford v. Royal Insurance Co Ltd

1938 1 AC 58

Freedom of contract

- A modern court might disregard all arguments about fortuity and public policy, on the basis that it is entirely a matter for the parties to decide whether death from suicide should be covered, and easy for insurers to exclude that cover altogether if they wish.
- Why do many insurers offer cover in the event of death by suicide?
- N.B. that the interests of assignees (e.g. mortgage lenders) can always be protected by appropriate wording.

Beresford v. Royal Insurance Co Ltd

1938 1 AC 58

And remember ...

- If the insured takes out a life policy with the intention of committing suicide, the policy will not respond in the event of his suicide, regardless of policy wording and regardless of when the suicide occurs.
- This is because the insured has failed to disclose a material fact when proposing for the insurance (i.e. his intention to kill himself) and also (probably) because of the absence of fortuity.

The Coroner's Verdict

The Standard of Proof

- It is difficult to persuade a Coroner to bring in a verdict of suicide.
- Suicide needs to be proved “*beyond reasonable doubt*”, whereas other verdicts, e.g. accidental death, can be found “*on the balance of probabilities*”.
- A direction that “*proof beyond all reasonable doubt*” requires all other possible explanations for the death to be considered and rejected, puts the standard too high. It suffices to consider all other *reasonable* alternatives.

The Inquest Verdict

Is a Suicide Verdict subsequently binding on a Judge?

- A Coroner's verdict is technically not binding on a Judge trying the suicide issue in a civil court (e.g. in the context of life insurance).
- In practice a Judge will respect a verdict of suicide, especially if it is from a Jury.
- If a Jury think that suicide is proved beyond all reasonable doubt, a Judge, sitting without a Jury, will be very slow to find that suicide is not even probable.
- Thus in practice an Inquest Jury's verdict of suicide is most unlikely to be challenged in subsequent proceedings.

The Inquest Verdict

Is an Open Verdict binding on a Judge?

- An open verdict, whether from a Coroner or a Jury, is not binding on a Judge, and indeed no such verdict is available in a civil court.
- If a Judge were to find that suicide was a possibility, he would have to go on to find which of suicide or accidental death was more probable.
- Thus “*open*” verdicts are easy to challenge in civil courts.

The Inquest Verdict

When is a Jury needed?

- A Coroner *must* empanel a Jury in cases where there is reason to suspect a death
 - in prison
 - in police custody
 - when it is “*reportable*” to a government department or the HSE (e.g. a death at a level crossing)
 - in circumstances prejudicial to public health or safety
- A Coroner *may* empanel a Jury when it appears to him there is good reason to do so. This extra power is exercised rarely.
- Coroners may try to sit without a Jury, even when the law requires one.
- A Jury is probably more likely than a Coroner to bring in a suicide verdict.

The Mock Inquest

What influenced the verdict?

- Relevant factors were probably:
 - Use of a Jury
 - Evidence of high life insurance cover, reducing on day of death
 - Cross-examination of deceased's son
 - Previous incident of attempted suicide by shotgun
 - Financial pressure from business failures
 - Depression
- None of the factors identified above would have operated had it not been for the presence and active participation of insurers' lawyers at the Inquest.

Suicide Verdict

Is it worthwhile?

- It is worthwhile making every effort to secure a suicide verdict at an Inquest.
- Such a verdict (unlike an open verdict) is effectively final and binding, and likely to be accepted as such by the family of the deceased.
- In civil proceedings on the policy, the fact of suicide will not have to be proved afresh, leaving the way clear for a short, simple and economic legal argument about policy response.

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